

2. By no later than February 10, 2026, Counsel for the Parties, are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by February 10, 2026 the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, February 13, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50% between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to this discovery motion referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by all Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for February 4, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

18. 9:01 AM CASE NUMBER: C24-01435

CASE NAME: TRYCIA LINO VS. GRE MANAGEMENT SERVICES, INC.

***HEARING ON MOTION FOR DISCOVERY ORDER IMPOSING SANCTIONS FOR FAILURE TO OBEY PRIOR COURT ORDER**

FILED BY: SAFEWAY, INC.

TENTATIVE RULING:

Summary

Defendant GRE Management Services, Inc. and Safeway, Inc. (collectively, "Defendants") Motion for Order Imposing Sanctions against Plaintiff Trycia Ann Lino ("Plaintiff") is **granted** in part as set forth herein.

Background

On October 8, 2025, Defendants filed a Motion for Order Imposing Sanctions for Failure to Obey Prior Order dated July 2, 2025. The Motion is supported by a Notice, Memorandum of Points and Authorities, and Declaration of Natasha Langenfeld., Esq. The Motion seeks Terminating Sanctions

striking Plaintiff's Complaint and Rendering Judgment by Default Against Plaintiff. The Motion also seeks \$1,470 in Sanctions and requests any other issue, evidence or termination sanctions the court deems appropriate under the Discovery Act. Proof of service was accomplished by electronic mail on October 7, 2026. Prior to filing this Motion, Defendants' Counsel had sent a meet and confer letter to Plaintiff's counsel on September 3, 2025, seeking further response to discovery.

No timely opposition was filed by Plaintiff.

Analyses

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing of this motion is January 20, 2026. Plaintiff Trycia Lino did not file a timely to this Motion.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be her consent to granting this motion.

Terminating Sanctions

While this motion is unopposed, the Court is mindful of its duty to exercise terminating sanctions in accordance with the parameters of its legal authority. Terminating sanctions under Code of Civil Procedure section 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against 'anyone engaging in conduct that is a misuse of the discovery process.'" *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991. Subdivision (d) of section 2023.030 provides, "The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. (4) An order rendering a judgment by default against that party."

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.'" [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a

history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” *Doppes, supra*, 174 Cal.App.4th at p. 992, fn. omitted, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 disapproved on other grounds in *Mileikowsky v. West Hills Hospital & Medical Center* (2009) 45 Cal.4th 1259.

The trial court may order a terminating sanction for discovery abuse “after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.” *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.

The standard of appellate review of a trial court ruling on a terminating sanction is not whether the trial court should have imposed a lesser sanction; rather, the question is whether the trial court abused its discretion by imposing the sanction it chose.”” *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1105.

In applying the foregoing authorities, the Court finds good cause to make the following ruling.

Ruling

Defendants’ Motion Imposing Sanctions is **granted** as follows:

1. The Court finds that Plaintiff failed to obey the order of this Court dated July 2, 2025, compelling Plaintiff to serve “code-compliant, objection free, verified responses, along with responsive documents, no later than 60 days after service of this order” pursuant to Cal. Code of Civ. Proc. § 2023.0101(g). Therefore, terminating sanctions are issued pursuant to Cal. Code of Civ. Proc. § 2023.030(d)(2) as follows:
 - (a) Plaintiff’s case is **stayed** until Plaintiff complies with the Court order dated July 2, 2025 by no later than February 20, 2026. No other proceedings will be If Plaintiff complies with this order, then the stay shall be lifted.
 - (b) If Plaintiff fails to produce all discovery as ordered by February 20, 2026, this case is **dismissed** with prejudice pursuant Cal. Code of Civ. Proc. § 2023(d)(3) **and** the court enters an order rendering a judgment by default against Plaintiff and for Defendant pursuant to Cal. Code of Civ. Proc. § 2023(d)(4).
2. Defendants motion for sanctions in the amount of \$1,470 is granted. Plaintiff shall pay monetary sanctions no later than ten (10) days from this order.
3. The Court sets a Case Management Conference for discovery compliance on February 24, 2026 at 8:30 a.m. Counsel are ordered to appear via Zoom or in-person to provide the Court with a status report on compliance with this order.
4. Defendants’ counsel is ordered to prepare and e-file a proposed order conforming with this tentative ruling no later than five (5) days from the date of the hearing.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES, II
HEARING DATE: 02/04/2026

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